



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 28, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202106374 regarding Lieutenant Christopher Schmidt, Tax No. [REDACTED] (DADS No. 2022-25494)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions taken by Lieutenant Christopher Schmidt did not amount to actionable misconduct and therefore do not warrant the imposition of a Schedule "A" Command Discipline.

In this matter, Lieutenant Schmidt was making a courteous gesture by picking up and returning the protective facemask belonging to an individual who had been arrested and who was some distance away awaiting transport to the arrest processing site. Upon handing the facemask to the arrested individual, Lieutenant Schmidt acknowledged tapping him on the hip with his hand as a calming gesture. Lieutenant Schmitt's effort to calm the individual, after a tumultuous arrest and in the midst of a violent protest, could only be described as a courteous gesture, neither intended nor reasonably interpreted to be discourteous.

Therefore, based on the foregoing, the Police Commissioner has determined that Lieutenant Schmidt will receive no disciplinary action for the allegation of discourtesy.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read "Lourdes Soto". The signature is fluid and cursive, with a prominent initial "L" and a long, sweeping horizontal stroke at the end.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office